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The Tao of Cross-Examination

Reconceptualizing Approaches to Effective Inquiry

BY BRENDAN HAMMER

There is almost nothing about cross-examination not already written, and the recipes for success are many. For those inclined to lists, one can find *The Only Three Rules of Cross-Examination*, the *Seven Steps to Cross-Examination*, and the *Ten Commandments for Cross-Examination*. There is also *The Secret of Cross-Examination*, the *Do's and Don'ts of Cross-Examination*, *The Art of Cross-Examination*, and the superb treatise *Cross Examination: Science and Techniques*. Every person who writes, speaks, or teaches trial advocacy is necessarily the lucky inheritor of an unbroken chain of litigation wisdom built up over decades and centuries in our profession. As such, there is nothing groundbreaking, novel, or new to be presented here—only an opportunity to slightly reframe and reconceptualize the approaches to effective inquiry that so many women and men have found over time.

For approximately 2,500 years, the Chinese have played a strategic board game known as Weiqi (often known as Go in the West). The goal of the game is to acquire and control territory on a board comprised of a grid. It is a game of

long-term aims, not short-term gains, but it differs from another strategically complex game, chess, in interesting ways that provide a useful motif for cross-examination. In Weiqi, all stones are equal in rank—there are no kings, queens, pawns, and the like. In chess, each player moves 16 pre-established pieces in a generally advancing fashion, all in order to subtract an opponent's pieces and ultimately capture a single game piece. While the chess player begins with 20 possible first moves, in Weiqi, the board begins with 361 potential first moves and a blank slate, with none of each side's 180 pieces present on the board. There is, critically, no checkmate in Weiqi, unlike chess where, at some final point, a hierarchically critical piece falls. The game proceeds by attempts at encirclement and advantage and concludes when stones have been placed and a final canvas of controlled territory is made. The initial, interim, and final loci of control—the center, edges, corners, and pockets—therefore differ between the two games.

In military and geopolitical strategy, many comparisons have been drawn between Weiqi and the famous text *The Art*

of War, by Sun-Tzu. Famously, Sun-Tzu referred often to making an enemy's trajectory and position change by creating a situation he must inhabit and in which he must tactically abide. This concept, known as "shi," refers to strategic advantage, and there is a robust body of literature on the wider application of the distinctions between Eastern vs. Western philosophical approaches to strategy, Weiqi vs. chess, maneuver and flexibility vs. strength and force, and encirclement and expansion vs. destruction and domination. While there are many good and specific criticisms of such a binary comparison, the broader salience of such analyses provides attorneys with a productive metaphor for viewing cross-examination more holistically.

There are many ways to think about what Weiqi and "shi" can tell us about what good cross-examination (and direct examination, for that matter) is and how it should be conceptualized. In a direct examination, we ask open-ended questions to elicit descriptive responses. We say things to the witness to prompt their painting of a picture with their own words. We say: "tell the court," "describe for the court," "let the court know," or "explain to the court." We gently nudge, steer, cajole, and work with the witness, usually in collaborative fashion. To some extent, we are more naturally and inherently exposed as we do so, as opposed to cross-examination. The witness may meander, wander, or roam, and we end each of our questions facing a blank slate of potential answers. There is, then, a looseness to the direct examination simply by virtue of the rules that govern it. And so, we must listen, observe, and calibrate our tactics and strategy during our time with the witness. In so doing, we also subtly educate the (usually) friendly witness about where we want to go, when to say more, and when to stop. We lead our witnesses to the responses we want them to provide, but we do so without asking them leading questions. The connection to Weiqi and "shi," on a direct examination, is quite clear. Both are nonlinear exercises, in practice.

While cross-examination requires no less of us in our ability to listen, observe, and calibrate, by contrast, this mode of inquiry also relies more upon tighter control and conscious direction for its efficacy. Done properly, the attorney uses clear, concise, and leading questions to establish a series of evidentiary admissions for the record. Those admissions should ultimately fit within a whole—the client's narrative and theory of the case. Each question should be designed to establish some goal, large or small. The discerning cross examiner will, even more than on direct, use their body, limbs, face, and vocal capacities to stimulate movement by the witness toward or away from something in question, and also to facilitate direction or lesson taking on the part of the witness. Good cross-examination requires fast sensory reflexes, sensitive skills of observation, and the ability to adjust rapidly in real time. If one thinks about it, the swiftness of reaction time required in conducting a cross

examination is far greater than on direct examination. There are more time and space to make marginal errors in a direct examination. However, a cross-examination can quickly lose a forest through the trees, and the attorney often does not realize it until it is too late.

And it is here where the Weiqi analogy begins to deepen. A talented attorney appreciates that a forward-facing, attack-oriented, and "destructive" cross examination of rhetorical whips, cudgels, and the like can destroy a witness's credibility and the opposing party's narrative. However, such an approach cannot and does not build an affirmative case or put flesh on the bones of the narrative for one's client. Many times, we lawyers too often conceive of or approach cross examination as a kind of verbal combat. Often, our clients want to see us "tear [the other spouse] up." And if we are being self-conscious and honest with ourselves, we too often can enjoy the thrust and

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parry that come with a verbal joust, from time to time. We even speak to our colleagues or think to ourselves in gladiatorial or sporting metaphors to refer to the trial advocacy exercise. But entertaining this particular mindset cedes too much critical ground that ought not be ceded.

At their core, refined cross-examinations build and do not tear down. They do the same thing direct examinations do, except backwards. Former Speaker of the U.S. House of Representatives Sam Rayburn (D-TX) once said, "Any jackass can knock down a barn; it takes a good carpenter to build one." So too, a good attorney will erect something positive, affirmative, or sustaining on cross-examination. The more discerning of the many recipes for success appreciate this fact. In building affirmatively, we are truly gaining strategic advantage in the terrain of a case, and by such tactical encirclement, we are better positioned to claim more territory (and win) at the conclusion of the trial or hearing.

Proceeding from a general philosophy of cross examination to specific applications or moves, we should always keep front of mind what we have the power to do in our leading question inquiries. We pick the words to put into the witness's mouth,



so it is critical to pick the right words—specific and calibrated words. The witness is made to agree or disagree with those words in a binary selection between yes and no. We pick these words to describe conversations, events, actions, and scenes. We control how the witness gets there and when. Appreciating the power of the “nonresponsive” objection as a critical tool, we can exert a kind of “shi,” and we then do what Sun-Tzu encouraged for military tacticians—we navigate the witness into a situation with which they must abide. This is done by titrating and calibrating our words to ultimately unlock and arrive at what we need. Critically, our clear-eyed, open-minded, and active listening observation of the witness and engaging with their response are required to do this. The

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necessity of viewing this active listening as the key tool in examination is akin to being able to observe each move in Weiqi and to see simultaneously how it relates to the many smaller territories involved, as well as the overall territory of the game. Listening is more vital than speaking.

Cognitive Habits—Another Piece on the Board

In establishing and maintaining strategic advantage within the cross-examination via discerning word choice for our questioning amid active listening, it is also important to reflect upon the human susceptibility to cognitive habits and certain mental “ticks” that we all share. For example, the anthropomorphic sticks out more in our minds, and we tend to recall via primacy and recency. Repetition matters, and we tend to want to find cohesive stories or cognizable patterns in facts. The existence and proliferation of real-world conspiracy theories flow in many ways from this pattern detection and sense making necessity within our brains. Relatedly, we tend to credit that which is tied to what we are already familiar with, we favor simplicity over complexity, and we tend to

disregard specificity for generality, thereby reducing events to certain key elements or features. In all of this, we inherently fill in factual gaps from our own history and background, our nature and our nurture, and stereotypes and cultural/social touchstones or reference points. There is a lot going on in our brains when we see and hear things. Knowing this, it behooves us to fashion our inquiries and examinations to either optimize and activate those instincts in the witness (or judge) or actively defuse them where appropriate.

We do these things as litigators because the “Tao of cross-examination” embraces the role of any inquiry to be that of depicting, teaching, educating, describing, illuminating, and framing. It essentially rejects frontal attack for subtle encirclement. The finest work on theories of cross-examination centralizes the fact that it is a positive and goal-focused undertaking. In this way, it is or should be egoless. We cannot make ourselves or the annihilation of the witness the point with quarrelsome sparring against an obstinate witness or opposing counsel. How many attorneys have we all witnessed who make the examination a pyrrhic battle of wits and wills? This is short sighted because the narrative is always and already the point; it is the territory to conquer. This sometimes requires a mental shift that thinking in terms of Weiqi and “shi” can help us implement more consistently.

Organizing the Pieces on the Board

To maintain the suppleness of mind, restraint of passion and temper, and flexibility to capitalize on cross-examination, the majority view is that having written scripts and lengthy outlines is bad. This seems so self-evident as to not require any further discussion. And yet, how often do we see even very seasoned litigators rely upon the flotational device of the script. We observe them reading and engaging in a rote, call-and-response fashion. But what we do not observe is the attorney *listening* actively. One of the things that made Johnny Carson, Larry King, and Oprah all such amazing hosts was their ability to keenly listen. From that, they asked simple and clear questions, and they often got revealing answers. The prior answers they received were like signals to them. When we paper ourselves at the podium, we dilute our ability to capture those signals.

This is why most trial advocacy literature suggests arrangement of examination under a more bite-sized chapter/goal/page type of method. Several reliable theorists of litigation have suggested specific approaches, and they are all worth considering. But before we can even wrangle the raw material of facts into a shorthand form that is useable at trial or hearing, we should first suss out internally the answers to the critical questions: What is the point of John Doe’s direct testimony for my opponent? How will he advance my



opponent's theory of the case? What elements of a claim will he establish or advance? Then, turning to our anticipated time with Mr. Doe, we ask ourselves, what can Mr. Doe do for me? How can he establish, confirm, or disconfirm certain facts that are critical for my client's claims, our theory of the case, and our narrative. In other words, how do I encircle Mr. Doe on the game board? As opposed to a mere frontal assault attempting to attack and confront, how (if at all) can I attempt to navigate Mr. Doe to other terrain? These can be complicated and time-consuming considerations, but they are more critical by far than what comes later, which can be navigated more dynamically. Without a full vision of the field of play, in advance, the words typed or written onto paper or memorized and notated either will not matter much or will leave critical points of exposure for our cases.

In *Rules of the Road: A Plaintiff Lawyer's Guide to Proving Liability*, Rick Friedman and Patrick Malone point out something that has relevance for the family lawyer in general and the cross-examining family lawyer in particular. The defense side of a tort action, per Friedman and Malone, benefits from the introduction of confusion, complexity, and ambiguity. These elements are injected to disrupt the plaintiff's attempt to establish facts that entitle them to relief. Those concepts have salience broadly for us, of course, but also at a more granular level. Bad cross-examinations are typically self-inflicted wounds. The attorney themselves allows confusion, complexity, and ambiguity to take hold during a time when they control the subject matter, tempo, pace, and nature of the inquiry.

In their well-respected treatise on cross-examination, Pozner and Dodd describe a method of organization that entails proceeding from a general to a more granular specific point—almost like a funnel. Larry Pozner & Roger J. Dodd, *Cross-Examination: Science and Techniques* (3rd ed. 2018). This approach is beneficial insofar as it prophylactically guards against inadvertent, self-created intrusions of complexity, specificity, and confusion. Simple questions, arranged thematically and proceeding in a logical and sensible fashion, inevitably narrow to a clear point and also have the benefit of providing a pragmatic and workable organizational structure. In other words, a lawyer can be their own worst enemy when the field of dispute is not properly assessed and the means to arrive at a goal are not clear.

Miscellaneous Reminders for Strategically Sophisticated Cross-Examinations

Lies versus Errors

Almost every lawyer has been tempted to ask: “were you lying then or are you lying now?” Even a less clunky formulation of that question is still too much of a frontal approach, however.

If a witness has lied, we will have the opportunity to say that at some point. The bridge too far is expecting to get lying witnesses to admit to their lying in court. This also can take time and is too direct an assault. For this reason, good trial advocacy practice suggests obtaining a commitment or admission from the witness relative only to being mistaken or wrong. Not only is this an easier concession to obtain from a witness, but chasing the lying angle is fraught and can be alienating of the court's sympathies and patience. Whatever subjective need is felt to go to the ultimate issue of veracity is irrelevant and not designed to maximizing territory.

Allow the Witness Silence and Embrace Use of Silence for Yourself

We are often plugged in, seemingly without cessation, to smartphones, tablets, laptops, and other devices. Our brains whiz, whirl, and chatter nonstop. Many of us are uncomfortable with silence in our personal lives, and this can bleed over into discomfort with silence in the public setting of the courtroom. Seconds feel like minutes, and we feel observed. We perhaps wonder about spinach in our teeth or whether we are sweating. But quiet is not to be feared; it is simply a signal of territory to obtain. Chances are the witness also gets uncomfortable with quiet, so we must use it intelligently and appropriately to help navigate the witness to where we want to go and to establish, maintain, or disrupt tempo and pacing. It is tempting to want to fill silence with words, but the silence can be viewed and used as a signal.

Ignore Objections; Just Do It Again

On cross-examination, another good aspiration is to keep opposing counsel as quiet as possible and therefore neutralized. When we get objections, the tendency, like filling silence, is to get our backs up. There was nothing wrong with the question we asked and so we insist it be answered. That very well may be, but the clock is ticking, and the objection is eating into it before we even respond. Treating an objection like water sliding off of a duck's back, the better approach (on multiple levels) is to simply rephrase. The ancillary upside potential of proceeding in this fashion is that a dilatory and vexatious opposing counsel who does not get the message will soon lose the judge and start to look like the problem. Proceeding otherwise risks being mired in a dispute that does not move the needle of the examination or the case.

The Perry Mason Moment

Similar to feeling a need to respond to objections or fill silences, we all sometimes want the “Eureka!” moments we saw as children on television and in movies. And often we chase



the prospect of that elusive result too much or too long. As in Weiqi, smaller-sized and strategic moves and areas of inquiry that rack up small victories, question by question, nonetheless move the narrative forward and establish our theory of the case. The big swings with bold and big questions can often fail miserably, waste time, annoy the court, and yield nothing but embarrassment or a messy record. Again, if understood as obtaining as much territory as possible at the end of the examination or case, we can forfeit terrain by becoming mired in skirmishes with little ultimate payoff.

Impeachment

Another area that we litigators can chase too long and too often is impeachment. It is generally good practice to pursue impeachments that are material and substantive. While it is sometimes a thrill to catch someone in an inconsistent statement, the court often does not relish those moments to the same extent because it is not invested in winning a “gotcha” moment. Moreover, minor impeachments lacking mission-critical status serve only to risk self-inflicted wounds by drawing attention to marginalia and away from substantive and material aspects of the case narrative. They can also be a murky and difficult area that consumes needless time and sows confusion and ambiguity if they are not clearly effectuated. At a certain point, they can appear to be gilding the lily.

Expert Witnesses Are Experts at Testifying

Not only do experts have substantive expertise in their fields, they also have greater than normal experience as witnesses. As such, attempts to outsmart and spar with experts are misplaced and can yield exposure to yet more self-inflicted wounds. So too, attempts to charm, please, or ingratiate oneself with the expert are likely dead ends. Experts are like lay witnesses, only more so. Novice lay witnesses can be rambling and narrative. Experts can be too, and consciously so. They often want to educate, narrate, and populate the record with the things they want to say. We cannot permit such attempted robberies of time and narrative to occur on our examinations. Experts should be controlled tightly, listened to closely, forced to remain responsive, and required to engage with our precise questions. At all times, with these dangerous witnesses, maintaining our pace, timing, and a firm grasp is key.

In maintaining timing and pace, as one attempts to obtain territory, it is critical to not let any witness (expert or otherwise) cut to the closing credits and jump to an answer we are not ready for them to give—because we must, or should, always tell our story our way. A cross-examination is

a bit like the Burger King marketing line from years ago, and you get to “have it your way.” But in doing so, do not ask the judge for help or instructions—this is a signal of tactical weakness if a witness is observant. It is a sign that we do not or cannot figure out how to control the process. It emboldens many witnesses, especially experts. Also, do not argue with witnesses or ask them nonsubstantive questions. Instead, we must use our eye contact, whole body, inflection, tenor, tone, and volume to ensure and demonstrate to all involved, especially the witness, that this is our terrain and it will not be encroached upon. The last critical suggestion that trial advocacy theory makes and real-world practice suggests is to not chase the preceding direct examination. This too is a sound and well-founded recommendation. Chasing the direct is, in reality, capitulating to the sequence, staging, and strategy of someone else. It is not ours.

When approached with these various thoughts in mind, we can better appreciate how cross-examination presents a fertile field for the lawyer willing to reconfigure tactics and approaches away from confrontation, argument, and attack and toward building concession, commitment, and agreement. The author and aphorist Nassim Nicholas Taleb once stated, “There are two types of people: those who want to win and those who want to win arguments.” A professional hazard we lawyers all face is the impulse to win arguments large and small—with either opposing counsel or witnesses. The more strategic approach to success with a witness at trial and longer term, as a litigator, is to focus on obtaining the win question by question, regardless, and often without, winning the argument. Doing so often requires rethinking what works in practice, as opposed to what makes us, or our client, feel good, effective, or zealous. It involves viewing our inquiries as strategic territories. It is not easy, at times, to maintain this mindset, but it is a beneficial and rewarding one to develop. **FA**



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